

Legal Environment for Business in Nepal

BBA — 4th Semester — 2024 — Answer Sheet

Subject Code: MGT234

Note: This answer sheet is currently a template. Detailed answers will be added progressively. Students are encouraged to refer to textbooks and class notes.

Section A

Brief Answer Questions: $[10 \times 2 = 20]$

1. Write down the essential elements of a valid contract.

Answer: [Detailed answer will be added soon. Students should write a comprehensive answer covering key concepts, examples, and diagrams where applicable.]

2. Who is the person of unsound mind?

Answer: [Detailed answer will be added soon. Students should write a comprehensive answer covering key concepts, examples, and diagrams where applicable.]

3. Why free consent is important?

Answer: [Detailed answer will be added soon. Students should write a comprehensive answer covering key concepts, examples, and diagrams where applicable.]

4. What is communication of offer?

Answer: [Detailed answer will be added soon. Students should write a comprehensive answer covering key concepts, examples, and diagrams where applicable.]

5. What is prospectus?

Answer: [Detailed answer will be added soon. Students should write a comprehensive answer covering key concepts, examples, and diagrams where applicable.]

6. Give the meaning of arbitration.

Answer: [Detailed answer will be added soon. Students should write a comprehensive answer covering key concepts, examples, and diagrams where applicable.]

7. State the types of breach of contract.

Answer: [Detailed answer will be added soon. Students should write a comprehensive answer covering key concepts, examples, and diagrams where applicable.]

8. Write down the modes of termination of contract.

Answer: [Detailed answer will be added soon. Students should write a comprehensive answer covering key concepts, examples, and diagrams where applicable.]

9. Define insolvency.

Answer: [Detailed answer will be added soon. Students should write a comprehensive answer covering key concepts, examples, and diagrams where applicable.]

10. State the nature of performance of contract.

Answer: [Detailed answer will be added soon. Students should write a comprehensive answer covering key concepts, examples, and diagrams where applicable.]

Section B

Short Answer Questions: (Attempt any SIX Questions)[6 × 5 = 30]

11. Discuss the importance of legal environment for business.

Answer: [Detailed answer will be added soon. Students should write a comprehensive answer covering key concepts, examples, and diagrams where applicable.]

12. Describe the various types of law.

Answer: [Detailed answer will be added soon. Students should write a comprehensive answer covering key concepts, examples, and diagrams where applicable.]

13. Mention the rules regarding contingent contract.

Answer: [Detailed answer will be added soon. Students should write a comprehensive answer covering key concepts, examples, and diagrams where applicable.]

14. Explain about the quasi contract.

Answer: [Detailed answer will be added soon. Students should write a comprehensive answer covering key concepts, examples, and diagrams where applicable.]

15. Discuss the roles of the liquidator.

Answer: [Detailed answer will be added soon. Students should write a comprehensive answer covering key concepts, examples, and diagrams where applicable.]

16. Explain about the business ethics issues in Nepal.

Answer: [Detailed answer will be added soon. Students should write a comprehensive answer covering key concepts, examples, and diagrams where applicable.]

17. Write about the right to information.

Answer: [Detailed answer will be added soon. Students should write a comprehensive answer covering key concepts, examples, and diagrams where applicable.]

Section C

Long Answer Questions: (Attempt any THREE Questions)[3 × 10 = 30]

18. Discuss the rights and duties of an unpaid seller.

Answer: [Detailed answer will be added soon. Students should write a comprehensive answer covering key concepts, examples, and diagrams where applicable.]

19. Explain the civil procedures in Nepal.

Answer: [Detailed answer will be added soon. Students should write a comprehensive answer covering key concepts, examples, and diagrams where applicable.]

20. Describe the procedures relating to the incorporation of company.

Answer: [Detailed answer will be added soon. Students should write a comprehensive answer covering key concepts, examples, and diagrams where applicable.]

21. What are the characteristics of a common carrier? Briefly explain.

Answer: [Detailed answer will be added soon. Students should write a comprehensive answer covering key concepts, examples, and diagrams where applicable.]

Section D

Comprehensive Answer / Case / Situation Analysis Questions:[4 × 5 = 20]

22. Shambhu contracts to Harihar to supply "RAKTA CHANDAN" to United States of America at a certain rate. Unfortunately, a law is enacted prohibiting export of "RAKTA CHANDAN" to foreign market except other than by the Government of Nepal. Is the contract valid or not? Give your legal opinion.

Answer: [Detailed answer will be added soon. Students should write a comprehensive answer covering key concepts, examples, and diagrams where applicable.]

23. "Bharat" knows "Ramesh" is the agent to sell the cloths. "Bharat" buys some cloths on credit, but "Bharat" does not know about the principal of "Ramesh". In fact, "Rupesh" is "Ramesh's" principal. Who has the right to ask for payment from "Bharat"?

Answer: [Detailed answer will be added soon. Students should write a comprehensive answer covering key concepts, examples, and diagrams where applicable.]

24. "Sarala" promises to pay an amount to "Gita" if she kills "Rita". "Gita" accepts it and commits the crime. "Sarala" denies to pay the amount promised. Can "Gita" recover the amount from "Sarala" by legal remedy?

Answer: [Detailed answer will be added soon. Students should write a comprehensive answer covering key concepts, examples, and diagrams where applicable.]

25. Prakash agreed to supply sugar to Mohan, on the condition that the amount will be paid after completing the supply of sugar. But Prakash fails to supply in part. What will be the justice? You decide it.

Answer: [Detailed answer will be added soon. Students should write a comprehensive answer covering key concepts, examples, and diagrams where applicable.]

These answer sheets are prepared for educational purposes. Students are encouraged to verify with official textbooks and course materials.